

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge William J. Martínez

Courtroom Deputy: Deborah Hansen
Court Reporter: Gwen Daniel

Date: October 22, 2012

Civil Action No. 10-cv-02529-WJM-KMT

Counsel:

DAVID GUARA,

Plaintiff,

Gregory Fasing
James Carleo

v.

CITY OF TRINIDAD, a City Municipality,

Defendant.

J. Andrew Nathan
Marni Nathan Kloster

COURTROOM MINUTES

JURY TRIAL - DAY ONE

Appearances

08:00 a.m. Court in Session

Court's comments

Plaintiff requests the Court invoke Rule 615 (by Mr. Fasing).

Defendant objects to Rule 615 being invoked (by Mr. Nathan).

Discussion re trial

ORDERED: Defendant's objection is overruled. Plaintiff's request for Rule 615 is GRANTED and Rule 615 is INVOKED.

08:28 Court in Recess

08:39 Court in Session

08:42 Jury panel present

08:51 Jury panel sworn voir dire.

08:52 Voir dire commences.

09:33 Voir dire (by Mr. Fasing)

09:50 Voir dire (by Mr. Nathan)

10:07 Bench conference

Voir dire continued.

10:16 Bench conference

10:24 Court in Recess

10:40 Court in Session - jury panel present

10:41 Bench conference

10:46 Voir dire concluded.

Challenges for Cause:

1. 100221863
2. 100202244

Plaintiff's Challenges:

1. 100217231
2. 100221066
3. 100225745

Defendant's Challenges:

1. 100206777
2. 100215503
3. 100201088

10:50 Jury sworn to try:

1. 100234516
2. 100210011
3. 100222278
4. 100221066
5. 100214520
6. 100232085

7. 100239763
8. 100218413

Court's opening remarks to the jury panel

11:04 Opening Statement (by Mr. Carleo)

11:20 Opening Statement (by Ms. Nathan)

PLAINTIFF'S FIRST WITNESS DAVID GUARA

11:40 Direct (by Mr. Fasing)

12:21 Court in Recess

01:31 Court in Session - jury present

PLAINTIFF'S FIRST WITNESS DAVID GUARA

01:31 Direct continued (by Mr. Fasing)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
24, 25

01:40 Court in Recess

01:59 Court in Session - jury present

PLAINTIFF'S FIRST WITNESS DAVID GUARA

01:59 Direct continued (by Mr. Fasing)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
18 (objection overruled)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
16, 20, 12, 14, 23

03:11 Court in Recess

03:26 Court in Session - jury present

PLAINTIFF'S FIRST WITNESS DAVID GUARA

03:26 Direct continued (by Mr. Fasing)

EXHIBITS IDENTIFIED and OFFERED 1 through 11

03:29 Voir dire (by Mr. Nathan)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
1 through 11

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
28 through 45

EXHIBITS IDENTIFIED and OFFERED: 13

03:50 Voir dire (by Mr. Nathan)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
13

04:05 Cross (by Mr. Nathan)

Deposition of David Guara opened and used for impeachment.

EXHIBIT IDENTIFIED, OFFERED AND RECEIVED:
A-67 (objection overruled)

EXHIBIT IDENTIFIED, OFFERED AND REFUSED:
G (objection sustained)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
L

05:06 p.m Court in Recess
Trial continued
Time: six hours and 55 minutes